

Subdivision Regulations in Michigan

Subdivision developers must comply with land use restrictions and guidelines for the community where the subdivision will be located. Because subdivision regulations can increase the burden on infrastructure of a community, states generally empower local governments to create their own subdivision regulations to protect the quality of life of their citizens. In Michigan, communities adopt their own rules, but also abide by Michigan's Land Division Act.

The stated purpose of the Michigan Land Division Act is to "regulate the division of land, thereby promoting the health, safety, and general welfare of the public." The act covers:

- Land design
- Determination of suitability for development, including drainage and floodplain considerations
- Access to and from building lots
- Recommendations for surveying and legal descriptions
- Approval and revision process
- Special assessments to defray development costs, including retention basins to collect surface runoff

Subdivision regulations adopted by local city and county governments may specify, among other things:

- Installation of roads, curbs, and sidewalks
- Set-back requirements
- Lot size minimums
- Grading
- Single-family or multi-family use
- Fencing
- Drainage
- A dedication of a portion of the property for walkways, green space, or a community park

Certain parcels of land may be split and are exempt from subdivision regulations. These exempt splits include, for instance, a tract of land owned by an individual who splits the property into one or more parcels, none of which consist of fewer than 40 acres, and all of which are accessible (e.g., no landlocked parcels).

When division or subdivision regulations apply, a replatting (remapping of the area, boundaries, and parcels) may be required to be submitted along with the request for the development. A replat can always be submitted, but it's not required if the division doesn't result in a number of parcels more than:

- Four parcels for the first 10 acres
- For each whole 10 acres after the first, an additional parcel (i.e., after the first 10 acres, 11 parcels per 10 acres is acceptable)
- For each whole 40 acres in excess of the first 120 acres, one additional parcel is allowed before replatting is required
- For each tract of land that's more than 20 acres, two additional parcels may be allowed before replatting is required, provided that one or both of the following apply:
 - The new roads planned by the development will prevent the need for new driveways to be built off an existing access road
 - One of the existing parcels contains at least 60% of the current parcel or tract

When a developer submits a plan to divide land, the municipality must respond to the request for the division within 45 days of filing the plan (with the assessor, or other designated official in the municipality). Smaller towns (those with populations of 2,500 or less) may turn over the responsibility of the approval of plans to the county government. For an application to be considered complete, it must include adequate legal descriptions of the property, a tentative parcel map showing parcel locations, utility easement locations, and accessibility. It must include a scale drawing showing the approximate dimensions of the parcels. Parcels may have depths of no more than four times their width, subject to local ordinance.